Reflective Journal 4: Indigenous Knowledge and ICIP

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1. What is Indigenous Knowledge (IK)?

The term Indigenous Knowledge (IK) refers to the knowledge created, maintained, and passed down by Indigenous Australians. It is linked to people, land, and identity and it dynamically adapts over generations. It can be divided into two categories: Traditional Knowledge - which encompasses innovations, practices, and skills across fields such as ecology, agriculture, medicine, and science – and Cultural Expressions, which include both tangible and intangible languages, storytelling, visual arts, dances, and rituals. Crucially, IK involves complex rules of communal ownership, where individuals hold roles and responsibilities as custodians to protect, respect, and pass on this knowledge, including secret or sacred knowledge that must remain confidential. Today, IK remains active in practice, as seen in the 5300+ Indigenous Cultural and Natural Resource Management projects run across Australia between 2011 and 2019.

2. Why must a designer be aware of Indigenous Cultural and Intellectual Property (ICIP)?

Current Australian Intellectual Property (IP) laws are often inadequate to protect Indigenous heritage. Australian law prioritizes individual, time-bound ownership (e.g., copyright expires 70 years after an author's death, yet the earliest known rock art is about 50,000 years old) and tangible materials. This fundamentally clashes with the communal ownership, and often oral nature of Indigenous Cultural Intellectual Property. Because the law fails to protect ideas, cultural sites, styles of art, and unrecorded performances, designers have a moral and ethical obligation to bridge this gap. Without ICIP awareness, designers risk cultural appropriation, publishing sacred knowledge, or excluding communities from commercial benefit, damaging cultural identity and custodial obligations. By understanding ICIP - such as Terri Janke's True Tracks principles - designers can ensure that Indigenous Australians maintain authority over their cultural heritage and expressions, and share the benefits of any commercialization.

3. If you were to complete this subject again and focus on Indigenous Australian data, what ethical practices would you apply to the project?

Respecting and adhering to the CARE data principles (Collective Benefit, Authority to Control, Responsibility, and Ethics) alongside the True Tracks framework would be the main focus of a project with Indigenous Australian Data. I would prioritise co-design and consent by seeking Free, Prior, and Informed Consent (FPIC) before collection, revisiting it at each stage, with the right to withdraw. This would ensure that Indigenous representatives shape the research questions so that the project delivers a Collective Benefit to their community. I would also ensure Authority to Control by recognizing Indigenous people as the primary owners and interpreters of their data. To do so, I would establish an advisory committee to oversee how the data is collected and contextually applied. Lastly, I would prioritize Cultural Integrity and Ethics by making sure that data integration practices cause no harm (e.g. protecting the identity of local groups), and actively seek advice on cultural restrictions to respect secret and sacred privacy.

4. In your future professional work, how might you apply ethical practices and protocols to protect ICIP when designing with and for Indigenous Australians?

I would adopt a proactive, culturally sensitive approach to data sovereignty and ICIP protection. Implementing mandatory Community Consultation by maintaining ongoing feedback loops before making any data public would be crucial to ensure that Indigenous stakeholders are co-designers rather than mere subjects. I would also explicitly attribute Indigenous custodians in all publications using their preferred phrasing to ensure Attribution and Benefit Sharing goals are met. This includes negotiating contracts that include formal ICIP clauses ensuring economic and social benefits. Additionally, I will use written releases and establish clear pathways for Indigenous communities to review and control the dissemination of their knowledge. I would also have communities review concepts before development and sign off before release.